

26VECV00272 26VECV00272

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-07

Motion: DEFENDANTS' DEMURRER TO PLAINTIFF'S COMPLAINT AND MOTION TO STRIKE PORTIONS THEREOF

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Case Number: 26VECV00272 Hearing Date: July 7, 2026 Dept: U

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

STEPHANIE

HANKEY, an individual,

Plaintiff,

vs.

ALIREZA KHOSROABADI, DPM, an individual;

CUTTING EDGE SURGICAL INSTITUTE, a corporation; and DOES 1-20, inclusive,

Defendants.

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CASE NO: 26VECV00272

[TENTATIVE] ORDER RE: DEFENDANTS'
DEMURRER TO PLAINTIFF'S COMPLAINT AND MOTION TO STRIKE PORTIONS THEREOF

Dept. U

8:30 a.m.

July 7, 2026

I.
BACKGROUND

This
case is a medical negligence action filed by Plaintiff Stephanie Hankey against
Defendants Alireza Khosroabadi, DPM ("Khosroabadi") and Cutting Edge Surgical
Institute ("Cutting Edge").

On
January 16, 2026, Plaintiff filed her complaint against Defendants, alleging:
(1) general negligence and (2) fraud.

On
April 1, 2026, Defendants filed their demurrer to the second cause of action

for fraud in Plaintiff's complaint and motion to strike portions of the complaint related to seeking punitive damages.

On

June 22, 2026, Plaintiff filed her opposition briefs.

On

June 30, 2026, Defendants filed their reply briefs.

II.

LEGAL

STANDARD

a. Demurrer

A demurrer

is a procedure to object to a pleading set forth under Code of Civil Procedure section 430.10, et seq. Because a demurrer tests the pleadings alone and not the evidence or other extrinsic matters, a demurrer analysis considers only those defects which appear on the face of the pleading or are judicially noticed. *SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.

b. Motion to Strike

The Court has broad authority to strike any portion of a pleading drawn not in conformity with the law and its orders. Code Civ. Proc., § 436. The trial court shall strike an allegation of punitive damages on motion unless the plaintiff has pleaded ultimate supporting facts. *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255 (Clauson)

III.

DISCUSSION

Defendants

demur to the second cause of action for fraud in Plaintiff's complaint and move to strike portions of the complaint related to seeking punitive damages.

As

discussed below, the demurrer will be sustained, with leave to amend. The motion to strike will be granted, with leave to amend.

a.

Review of Allegations in the Complaint

Plaintiff

pleads that Khosroabadi breached the applicable standard of care while performing procedures on Plaintiff's low right extremity at Cutting Edge surgery center on several dates throughout 2023 and 2024. Plaintiff pleads she learned of Khosroabadi's professional negligence after her file was reviewed by another board-certified foot surgeon on October 3, 2025.

(Complaint, p. 4.)

Plaintiff

alleges Khosroabadi did not perform certain procedures billed on September 20, 2023, nor did he perform several other procedures that were billed during 2023, 2024, and 2025. Plaintiff pleads:

.
she first discovered the fraudulent
billing on October 3, 2025;

.
Khosroabadi "waited until April 7, 2025,
to author & sign self-serving and inaccurate medical records." (Complaint, p. 5.)

.
"On Nov. 12, 2024, [Plaintiff] purportedly
underwent several procedures performed by [Khosroabadi] at [Cutting Edge]. Both
defendants advised, represented and/or indicated that the medical bills
(totaling \$288,150) would be submitted to [Plaintiff's] health insurer.

.
Defendants intentionally refrained from
submitting bills to the health insurer for an approximate year, which were
denied as untimely.

.
[Khosroabadi] was retaliatory since his

bills were only submitted after he had already received a CCP 364 Notice of Intent to Bring Medical Malpractice Action.”
(Complaint, p. 6, ¶ FR-4.)

Plaintiff

further pleads that she “rightfully assumed that her medical bills from [Defendants] would be timely submitted to her health insurer. However, when [Plaintiff] inquired about the status of her bills in December of 2025, she discovered that most of her bills from Defendants were not timely submitted and were consequently denied by insurance. [Plaintiff] seeks an injunction against Defendants from pursuing their medical bills.”
(Complaint, p. 6, ¶ FR-5.)

b.

The demurrer will be sustained, with
leave to amend.

Defendants

demur to Plaintiff’s second cause of action for fraud in the complaint.

The necessary elements

for fraud are: (1) misrepresentation; (2) knowledge of falsity; (3) intent to defraud; (4) justifiable reliance; and (5) resulting damage.¿ Conroy v. Regents of Univ. of Cal. (2009) 45 Cal.4th 1244, 1255.¿ Additionally, any action sounding in fraud must be pleaded with particularity.¿ City of Pomona v. Superior Court (2001) 89 Cal.App.4th 793, 803.¿ This heightened pleading standard requires a plaintiff to plead facts in his complaint showing “how, when, where, to whom, and by what means the representations [amounting to fraud] were tendered.”¿ Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.

Plaintiff generally

alleges Defendants billed for medical procedures that were never performed. Plaintiff also alleges (a) Defendants waited until April 7, 2025, many years after treatment had been rendered, before signing medical records that inaccurately reflected the type of treatment that was rendered, and (b) this was an attempt by Defendants to alter Plaintiff’s medical records to hide their negligence and fraud.

The foregoing allegations

are insufficient for Plaintiff to satisfy her heightened pleading burden when alleging fraud. While Plaintiff alleges Defendants did not perform a shortening procedure on September 20, 2023, which contradicts Defendants' billing records, Plaintiff fails to allege the precise billing code and amount billed by Defendants and how those amounts differ from the procedures that were, in fact, provided.

Plaintiff also fails to allege facts showing the shortening procedure never occurred at all. Elsewhere in the complaint, Plaintiff alleges Defendants performed a series of procedures on her right extremities and right foot. Plaintiff's specific factual allegations are insufficient to show that the September 20, 2023 discrepancy was an intentional false recording of medical care rather than, e.g., a billing error as to the date on which a certain procedure was performed. Plaintiff will need to include more particularized facts regarding the September 20, 2023 billing discrepancy for it to serve as the basis for her fraud claim.

Plaintiff also alleges Defendants "did [not] perform many of the procedures or services that [they] billed for during 2023, 2024, and 2025." (Complaint, p. 5, ¶ FR-2 (b)).

Such a generalized statement does not show specific fraud. Plaintiff will need to specify which procedure was falsely billed, as well as that the procedure never occurred at all to show that Defendants were fraudulently charging Plaintiff for services never rendered rather than, e.g., submitting billing records that were inaccurate as to certain dates.

As to damages, Plaintiff fails to allege that any of the specific amounts falsely billed were paid out. Plaintiff also fails to allege that Defendant's belated submission of \$288,150.00 in claims has resulted in any harm to Plaintiff. Plaintiff specifically alleges that her health insurer denied Defendants' late submission of bills as untimely. (See Complaint, p. 6, ¶ FR-4.). While Plaintiff seeks an injunction against Defendants from pursuing such bills (see Complaint, p. 6, ¶ FR-5), Plaintiff does not allege that Defendants have succeeded in obtaining any of those amounts from Plaintiff (or from her health insurer). Thus, Plaintiff has not shown damages.

The demurrer will be sustained, with leave to amend.

c.

The motion to strike will be granted, with leave to amend.

Defendants

move to strike portions of the complaint related to seeking punitive damages.

The trial court shall strike an allegation of punitive damages on motion unless the plaintiff has pleaded ultimate supporting facts. *Clauson*, supra, 67 Cal.App.4th at p. 1255.

Punitive damages may be imposed on conduct that is malicious, oppressive, or fraudulent. *Cal. Civ. Code*, § 3294 (a). Findings of malice and oppression require “despicable” conduct, and “despicable” conduct is “base,” “vile,” or “contemptable.” *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725 (*College Hospital*).

Here, Plaintiff’s punitive damages allegations fail for the same reasons as Plaintiff’s fraud claim. Plaintiff’s allegations are insufficiently specific to show Defendants’ conduct was maliciously designed to harm Plaintiff. While Plaintiff alleges Defendants’ billing records were inaccurate, Plaintiff fails to allege such facts with sufficient particularity for the Court to understand that the inaccuracies were intentional and malicious rather than the product of ordinary billing errors. While Plaintiff alleges Defendants submitted bills years after services were performed, Plaintiff also alleges that her insurer already denied those claims as untimely. Based on these allegations, Plaintiff has not shown Defendants engaged in specific, despicable conduct designed to harm or oppress Plaintiff.

The motion to strike will be granted, with leave to amend.

IV.

CONCLUSION

Defendants

Alireza Khosroabadi, DPM and Cutting Edge Surgical Institute's demurrer to the second cause of action for fraud in Plaintiff's Complaint is SUSTAINED, with leave to amend.

Defendants

Alireza Khosroabadi, DPM and Cutting Edge Surgical Institute's motion to strike portions of Plaintiff's Complaint related to seeking punitive damages is GRANTED, with leave to amend.

Plaintiff

is ORDERED to file her First Amended Complaint within ten (10) days. See Cal. Rules of Court, Rule 3.1320(g).

Defendants

Alireza Khosroabadi, DPM and Cutting Edge Surgical Institute are ORDERED to give notice.

DATED: July 7, 2026

Lee

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Judge

of the Superior Court